

Court No. - 3

Case :- WRIT - C No. - 32880 of 2021

Petitioner :- Ram Nagina Tiwari

Respondent :- State Of U.P Thru Secretary Home Govt. Up. Lknw. And 5 Other

Counsel for Petitioner :- Prem Shankar Sharma

Counsel for Respondent :- C.S.C.,Udit Chandra

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Jayant Banerji,J.

Heard learned counsels for the parties.

This writ petition has been filed praying for the following relief:

"i) issue, a writ, order or direction in the nature of certiorari call for record and quash the recovery Notice dated 26.10.2020 issued by the Executive Engineer, Electricity Distribution Division-1st, U.P. Power Corporation Ltd. Chandauli and Notice dated 21.01.2021 issued by Tehsildar, Chandauli, District Chandauli (Annexure No. 5 to the writ petition)."

Learned counsel for the respondent No.4/Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, this writ petition is disposed off giving liberty to the petitioner to submit his objection under Para 6.8 of U.P. Electricity Supply Code, 2005 before the respondent No.4 within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No.4 in accordance with law, expeditiously, preferably within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 20.5.2022

o.k.